
2:00 PM

Line 2

23-CIV-06178 TERRA PARKER, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS
SIMILARLY SITUATED, AND ON BEHALF OF THE STATE OF
CALIFORNIA AND OTHER AGGRIEVED PERSONS VS LYRA HEALTH,
INC., A CORPORATION

TERRA PARKER, INDIVIDUALLY AND ON BEHALF OF
ALL OTHERS SIMILARLY SITUATED, AND ON BEHALF
OF THE STATE OF CALIFORNIA AND OTHER AGGRIEVED
PERSONS

JUSTIN F. MARQUEZ

LYRA HEALTH, INC., A CORPORATION

CHAD D. GREESON

Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement

TENTATIVE RULING:

Plaintiff Terra Parker's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement is being continued to June 5, 2026, 2:00 p.m. in Dept. 20 – Courtroom L so that Plaintiff's counsel can remedy the issues identified below.

The proposed Settlement is for \$450,000. According to the motion, it is estimated that there are approximately 104 class members. The Net Settlement Amount is estimated to be \$221,500. The Settlement will provide a payment of \$22,500 to the California Labor and Workforce Development Agency (i.e., 75% of the \$30,000 amount allocated to resolve the PAGA allegations). The remaining \$7,500 shall be distributed amongst aggrieved employees. The Settlement would provide an estimated \$2,129.81 to each class member.

In ruling on class action and PAGA settlements, this Court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 66 ["trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."]; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 ["The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.""]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

Review of a proposed class action settlement typically involves a two-step process: preliminary approval and a subsequent final approval hearing. (*Cellphone Termination Fee Cases* (2009) 180 Cal.App.4th 1110, 1118; Cal. Rules of Court, 3.769; Code. Civ. Proc., § 581, subd. (k).)

Precertification settlements in class actions should be scrutinized carefully. (*Cho v. Seagate Technology Holdings, Inc.* (2009) 177 Cal.App.4th 734, 743 (*Cho*).) This is accomplished through careful review by the trial court, and precertification settlements are routinely approved where they are found fair, adequate and reasonable. (*Ibid.*; see also *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 240, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) “‘Due regard,’ ... ‘should be given to what is otherwise a private consensual agreement between the parties. The inquiry “must be limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.” [Citation.]....’” (7–Eleven Owners for Fair Franchising v. Southland Corp. (2000) 85 Cal.App.4th 1135, 1145, quoting *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802 (*Dunk*).) The test is not whether the maximum amount is secured, but whether the settlement is reasonable under all circumstances. For example, a trial court does not abuse its discretion in approving a settlement when it found that the settlement was achieved at arm's length negotiation, including review of the mediator's declaration; the fact the case was vigorously litigated; plaintiff was represented by experienced counsel; the number of class members who objected or opted out was very small; and plaintiff faced considerable risk in proceeding to trial. (*Cho, supra*, at p. 745.)

The trial court possesses a broad discretion to determine the fairness of the settlement; a discretion exercised through the application of a handful of identified criteria. Both the federal circuit courts and our Court of Appeal have adopted a mix of relevant considerations, including “[1] the strength of plaintiffs' case, [2] the risk, expense, complexity and likely duration of further litigation, [3] the risk of maintaining class action status through trial, [4] the amount offered in settlement, [5] the extent of discovery completed and the stage of the proceedings, [6] the experience and views of counsel, ... and [7] the reaction of the class members to the proposed settlement.” (*Dunk, supra*, 48 Cal.App.4th at p. 1801.) The list of factors is not exhaustive and “should be tailored to each case.” (*Id.* at p. 1801.) According to the *Dunk* court, “a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Id.* at p. 1801.)

The Court intends to grant the motion, but Plaintiff needs to submit a declaration as to her adequacy to serve as the class representative. (*See Imperial County Sheriff's Assn. v. County of Imperial* (2023) 87 Cal.App.5th 898, 919.) Additionally, the Court has identified the following minor issues with the motion:

- The releases as written in the proposed notice should match what is written in the Settlement (i.e., start with the language that the release is based on claims that were or could have been raised based on the facts in the complaint, etc.).
- The administrator's costs are reported as \$20,000 in the Notice, which is different than the 6,000 reported in the Fattahi Declaration.

The Court will decide whether to preliminarily approve Plaintiff's requested incentive award once Plaintiff submits her declaration. Plaintiff should describe her contributions to the class, estimate the amount of hours she spent on this matter, and describe any specific consequences she experienced as a result of serving as class representative.

Lastly, the Court recommends the selection of CASA of San Mateo County as the *cy pres* recipient and suggests that the deadline for sending objections, requests for exclusion and workweek disputes be changed to 60 days.

The Court finds that the remaining requirements for preliminary approval have been met. Plaintiff has sufficiently addressed the following factors:

Plaintiff provided notice to the LWDA as required by Labor Code section 2699.3, subdivision (a)(1)(A). (See Fattahi Dec., ¶¶ 4-5, Ex. 1-2.)

The Court finds that the Settlement is preliminarily fair and reasonable. While the Court places reliance on counsel's opinion, the Court "must also receive and consider enough information about the nature and magnitude of the claims being settled, as well as the impediments to recovery, to make an independent assessment of the reasonableness of the terms to which the parties have agreed. We do not suggest that the court should attempt to decide the merits of the case or to substitute its evaluation of the most appropriate settlement for that of the attorneys. However, as the court does when it approves a settlement as in good faith under Code of Civil Procedure section 877.6, the court must at least satisfy itself that the class settlement is within the 'ballpark' of reasonableness. (See *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499–500, 213 Cal.Rptr. 256, 698 P.2d 159.) This the Court cannot do if it is not provided with basic information about the nature and magnitude of the claims in question and the basis for concluding that the consideration being paid for the release of those claims represents a reasonable compromise." (*Kullar, supra*, 168 Cal.App.4th at p. 133.)

In this case, the memorandum of points and authorities and declaration of Arrash T. Fattahi provide information regarding each of these factors.

The Settlement was negotiated at arms-length. The parties participated in mediation with Monique Ngo-Bonnici, Esq. on September 10, 2024 which resulted in the instant settlement. Prior to mediation, Class Counsel received significant informal discovery and prepared damages estimates.

The Settlement is within the ballpark of reasonableness. The Settlement is for \$450,000. Class Counsel has presented liability and damages estimates based on their evaluation of the records received through discovery and discounted their estimates based on the risks inherent to class action litigation and specific defenses set forth by Defendant. Settling now for a lesser amount than might be received at trial is reasonable given those risks, the cost of going forward, and the time value of money.

There has been sufficient investigation and discovery, and Class Counsel is experienced in similar litigation. Class Counsel received relevant documents from Defendant including a sample of class member payroll and timekeeping records. Mr. Fattahi of Wilshire Law Firm, PLC provides information in his declaration as to his and his colleagues' experience in class action litigation. (Fattahi Dec., ¶¶ 39-48.)

The Court finds that the allocation of the Settlement between the class and PAGA is fair and reasonable. (*Nordstrom Com. Cases* (2010) 186 Cal.App.4th 576, 589 [finding no abuse of discretion to allocate nothing to PAGA in a PAGA/class settlement]). Further, the LWDA has been provided notice of the Settlement and has not objected. (See Fattahi Dec., ¶ 10, Ex. 4.)

Plaintiff has provided information as to the following elements of class certification:

-
- **Numerosity/Ascertainability:** Plaintiff defines the class according to objective criteria, and the class member identities are available from Defendant's regular business records. The class consists of approximately 104 individuals, making joinder impracticable. The Court finds numerosity and ascertainability.
 - **Commonality:** Common issues predominate over whether Defendant violated wage and hour laws.
 - **Superiority:** The Court finds the superiority requirement satisfied because of the benefits and efficiencies of this proposed Settlement, when compared to continued litigation of the case on either a class basis or through multiple individual lawsuits.
 - **Typicality:** Plaintiff represents that her claims are the same as those of the class members she seeks to represent, and the Court agrees.
 - **Adequacy of Representation:** Plaintiff has demonstrated that her counsel is adequate to represent the class. But as noted above, Plaintiff has not provided her own declaration, therefore the Court does not find adequacy of representation at this time.

The Court finds the contents of the settlement notice to be substantively adequate. (Cal. Rules of Court, rule 3.769(f); *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 694.) The Court also finds the method of notice—first class mail—to be sufficient. (*City of San Diego v. Haas* (2012) 207 Cal.App.4th 472, 502; *Chavez v. Netflix, Inc.* (2008) 162 Cal.App.4th 43, 57; *Wershba v. Apple Computer, Inc.*, *supra*, 91 Cal.App.4th at p. 251.)

The Court finds that Phoenix Class Action Administration Solutions is a qualified settlement administrator and approves its retention, as well as the allocation of \$6,000 for its services.

The Court finds the request for attorneys' fees and costs preliminarily reasonable, subject to a lodestar cross-check as described below.

The Court will decide on attorneys' fees, costs and service awards at a hearing based upon a noticed motion, which will be heard on the same date as the hearing on final approval. Class Counsel is to submit evidence supporting each of these requests.

For the attorneys' fees award, counsel shall provide sufficient evidence so that the Court can perform a lodestar cross-check, including either billing records or comparable evidence, including which attorneys or support staff worked on each task, support for the hourly rate as reasonable in San Mateo County, and evidence, if any, supporting an award of a multiplier. For the costs, they shall be sufficiently identified so that the Court can determine their reasonableness.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, then the matter will be continued as indicated and it shall become the order of the Court by Minute Order.

2:00 PM

Line 3

24-CIV-00585 IN RE ILLUMINA, INC. SHAREHOLDER LITIGATION

LOREN SCOTT MAR, INDIVIDUALLY AND ON BEHALF
OF ALL OTHERS SIMILARLY SITUATED

ADAM E. POLK

FRANCIS A. DESOUZA

KOJI F FUKUMURA

Plaintiff's Motion for Class Certification

TENTATIVE RULING:

Plaintiffs Motion for Class Certification is GRANTED.

The Court finds that the requirements for class certification have been met.

Section 382 of the Code of Civil Procedure authorizes a class action when “the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court.” “[W]e have articulated clear requirements for the certification of a class” under this statute. (*Brinker, supra*, 53 Cal.4th at p. 1021.) “The party advocating class treatment must demonstrate the existence of an ascertainable and sufficiently numerous class, a well-defined community of interest, and substantial benefits from certification that render proceeding as a class superior to the alternatives.” (*Ibid.*) “The community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical on the class; and (3) class representatives who can adequately represent the class.’ ” (*Linder, supra*, 23 Cal.4th at p. 435.) Regarding the first of these factors, we have recognized “ ‘[a]s a general rule’ ” that “ ‘if the defendant’s liability can be determined by facts common to all members of the class, a class will be certified even if the members must individually prove their damages.’ ” (*Brinker*, at p. 1022; see also *Daar, supra*, 67 Cal.2d at p. 706.) Relatedly, “In certifying a class action, the court must also conclude that litigation of individual issues, including those arising from affirmative defenses, can be managed fairly and efficiently.” (*Duran v. U.S. Bank National Assn.* (2014) 59 Cal.4th 1, 28-29.) Finally, other considerations relevant to certification “include the probability that each class member will come forward ultimately to prove his or her separate claim to a portion of the total recovery and whether the class approach would actually serve to deter and redress alleged wrongdoing.” (*Linder*, at p. 435.)

(*Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 968–969. See also Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter, June 2025 Update) ¶ 14:11 (“Under California law, the party seeking class certification must establish three things: [1] the existence of an ascertainable and sufficiently numerous class, [2] a well-defined community of interest, and [3] substantial benefits from certification that render proceeding as a class superior to the alternatives” (citations omitted).